
Interview Details

██████████ was interviewed at the CCRB on January 2, 2014. ██████████ was ████████ years old at the time of the incident. She is a white female, who is 5'7" tall, 175 pounds, and has brown hair and hazel eyes. The interview began at 12:54 p.m.

On December 6, 2013, at approximately 12:30 p.m., ██████████ was working as ██████████. A nurse ██████████ approached ██████████ and asked her to come speak to PO Teco who was directing her to draw blood on a patient. ██████████ later learned that the patient was suspected of drunk driving, but she was not sure if the patient was under arrest. ██████████ went to the private room where PO Teco, PO1, and PO2 were located with the patient, and she asked to speak to PO Teco in the hallway.

In the hallway, ██████████ explained her understanding of the hospital's policy to require consent when drawing blood and said she would call the Legal Department to confirm. PO Teco told ██████████ that they did not need consent to draw blood. ██████████ explained that she would call the Legal Department, and PO Teco stepped towards her so that he was between six inches and one foot away, and said, "You get them down here right now," as he pointed to the ground. His demeanor was agitated and demanding, whereas ██████████ demeanor was respectful. When ██████████ explained that the Legal Department was located in another building, PO Teco stepped closer to her again. Ms. Gucciardi then said, "I can't talk to you anymore. Your behavior is inappropriate. I'm going to call Legal and your sergeant." ██████████ turned and began to walk away. PO Teco followed her, walking quickly, and responded, "You're not going to call anyone because I'm going to arrest you for obstruction." He may have threatened to arrest her one more time in the hallway. ██████████ and PO Teco passed the nurses' station, and there were many witnesses.

When ██████████ reached her office, she instructed PO Teco to wait outside. He said, "I don't have to because I'm going to arrest you," and followed her into her office. PO Teco stood in front of ██████████ door, while she tried to call the Legal Department. ██████████ instructed him to leave her office three times. PO Teco did not respond to these statements. By the third time she told PO Teco to leave her office, ██████████ had raised her voice. She and PO Teco were speaking in a similar loud volume, but they were not yelling at one another. PO Teco's hands were shaking. When PO Teco threatened to arrest ██████████ again, she said, "Go ahead." At this point, the hospital's security officer, ██████████, entered ██████████ office and suggested that PO Teco leave. PO Teco complied. Staff from the hospital could hear the conversation from outside of the office including, ██████████, ██████████, and ██████████.

Once PO Teco left her office, ██████████ confirmed with the Legal Department, that hospital staff could not draw blood without the patient's consent. She printed the policy and gave it to ██████████, the doctor director at the hospital. He met with PO Teco alone in ██████████ office and explained the policy to him. PO Teco left ██████████ hospital, said that it was ██████████ fault that they could not get a blood sample, and then left the hospital through the ambulance entrance. ██████████ called PO Teco's command and made a complaint with his sergeant. Sgt. Drone came to visit her a couple days later at work to apologize. She informed him that she had filed a complaint with the CCRB.

At the time of the interview, ██████████ provided statements written by ██████████ ██████████, and herself for the hospital's investigation of the incident. She provided the following phone numbers to reach the staff for witness statements: ██████████ and ██████████.

██████████ provided the following officer descriptions:

PO Teco – White male, olive-complexion, 40s, 5'10", average build, brown hair, in uniform with stripe down leg, from Highway Patrol 5. Learned his name from ██████████ who observed it on his nameplate.

PO1- female, in uniform, from 123rd Precinct

PO2 – male, in uniform, from 123rd Precinct

The interview concluded at 1:18 p.m.

Interview Details

The interview began at 2:18 p.m.

On December 6, 2013, at approximately, [REDACTED] was in the Emergency Department of Staten Island University Hospital's South Campus, about to go to lunch with [REDACTED]. As [REDACTED] and [REDACTED] passed an observation room, [REDACTED] noted that she needed to speak to an officer there. [REDACTED] asked PO Teco to step out of the patient's room into the hallway so that they could speak. Two officers, PO1 and PO2, remained in the room with the patient. [REDACTED] did not have interaction with the patient or those officers, but believes the patient was there on suspicion of DWI. [REDACTED] did not know if the patient was under arrest.

In the hallway, [REDACTED] calmly explained to PO Teco that they needed formal consent to draw the patient's blood to test for blood alcohol content. PO Teco responded that they had obtained verbal consent from the patient. [REDACTED] explained that the hospital's policy was to require formal, written consent from the patient in order to draw blood, but that she would check with the legal department to confirm the policy. PO Teco, who had initially been polite, became agitated by raising his voice and pointing his finger at [REDACTED]. PO Teco told [REDACTED] to get the legal department to the location right away. [REDACTED] explained that the legal department was located in a different building on the campus, but that she would call them. She also explained that if they took the patient's blood in violation of the protocol, it would be thrown out in court. PO Teco continued to be agitated and said, "I'm going to arrest you for obstruction of justice," because we will be past the time period by which we need to take the patient's blood. [REDACTED] took two steps back and told PO Teco that he was being inappropriate. As she turned away, she told PO Teco she would call the legal department and his sergeant. PO Teco replied, "You can call whoever you want, because you're still going to jail."

PO Teco followed [REDACTED] to the opposite end of the emergency department, where her office was located, even though [REDACTED] had told him to wait by the patient's room. PO Teco was speaking to [REDACTED] as he followed her down the hallway, but [REDACTED] could not hear exactly what he was saying. [REDACTED] was following behind by about 20 feet. When [REDACTED] reached her office, she told PO Teco not to come into her office. He entered her office anyway.

[REDACTED] went to the nurses' station around the corner to wait. A nurse came over to [REDACTED] to tell her that [REDACTED] could not get PO Teco out of her office. [REDACTED] walked to [REDACTED] officer where she found the security officer, Jack Wagner, standing in between PO Teco and [REDACTED]. [REDACTED] heard [REDACTED] tell PO Teco to get out of her office at least three times. PO Teco said, "You're going to jail." [REDACTED] said, "Go ahead." Mr. Wagner reasoned with PO Teco to leave the office, but it took several minutes. [REDACTED] was agitated and nervous in her office. She was speaking in a raised voice and her hands were shaking. PO Teco continued to be agitated in the same way he had been throughout the incident.

[REDACTED] pulled up the policy regarding consent and asked [REDACTED] to leave her office. [REDACTED] gave the policy to [REDACTED]. [REDACTED] explained the policy to PO Teco in [REDACTED] office. When PO Teco walked out, [REDACTED] asked him if he had everything he needed. PO Teco then said it was [REDACTED] fault that the patient was not going to jail and left the hospital.

The entire interaction lasted between 10 and 15 minutes. [REDACTED] said the entire nursing staff witnessed part or all of the incident. She named [REDACTED], [REDACTED], and [REDACTED] as possible witnesses.

PO Teco - Hispanic (olive skin tone) male, 30s, 5'10" tall, muscular build, short black hair, big boots, uniformed. Identified by [REDACTED] by reading it off of his shield during the incident.

PO1 - White male

PO2 - female

The interview concluded at 2:35 p.m.

Interview Details

Subject Officer: PO Pedro Teco

- PO Pedro Teco is a white man who was 39 years old at the time of the incident. He is 5'9" tall, weighs 180 pounds, and has black hair and brown eyes.
- On December 6, 2013, PO Teco was assigned to patrol alone as part of the Highway 5 command from 6:00 a.m. to 2:35 p.m. He was dressed in uniform and driving marked RMP, no. [REDACTED]

Memo Book

On the date of the incident, PO Teco's memo book notes verbatim, "1100 IDTU 123/Staten Island University Hospital South. 12:40- refused. [REDACTED] refused to take blood, wanted a warrant."

CCRB Testimony

PO Teco was interviewed at the CCRB on April 2, 2014. The interview began at 9:33 a.m. and ended at 9:54 a.m. His testimony is summarized below.

On December 6, 2013, PO Teco went to Staten Island University Hospital for a "blood job" for a civilian, CIV1, arrested for driving under the influence. The NYPD conducts blood jobs when an arrestee cannot go to where the breathalyzer is located because they need medical treatment. When PO Teco arrived at the hospital, the arresting officer, whose identity PO Teco could not remember, explained the situation to PO Teco. PO Teco did not observe any injuries to the CIV1's person and did not know the specific reason he was at the hospital. CIV1 seemed high, not intoxicated. When PO Teco first arrived at the hospital, a sergeant, her operator, the arresting officer, and the arresting officer's partner were present. All of these officers were from the 123rd Precinct.

PO Teco explained to CIV1 who he was and why he was there. PO Teco asked CIV1 if he consented to a blood test and CIV1 provided affirmative consent. No medical personnel were present at that time. PO Teco then told the arresting officer he would go find a nurse to draw CIV1's blood. PO Teco explained that they had an arrestee who had consented to a blood test and requested assistance. The nurse said, "Okay, give us a couple minutes." After waiting ten to fifteen minutes, PO Teco told another nurse that CIV1 had consented to a blood test and requested assistance. That nurse told PO Teco she would find someone to do the test right away.

[REDACTED] came to the room where PO Teco was with the patient and asked him to step out of the room. [REDACTED] asked PO Teco, "Do you want to take blood from this prisoner?" [REDACTED] demeanor was firm and "to the point." PO Teco's demeanor was similar, calm and collected. PO Teco only raised his voice slightly once. PO Teco said both that [REDACTED] demeanor remained the same throughout the incident, and also that she began yelling later. PO Teco affirmed that he did. [REDACTED] said, "Officer, you need a warrant for that." PO Teco said he did not need a warrant, and [REDACTED] repeated that he did need one. [REDACTED] never mentioned requiring written consent at any point, and CIV1 had not provided written consent because it had not gotten to that point yet. [REDACTED] then said she was going to call an administrator to find the paperwork that explained PO Teco needed a warrant. As [REDACTED] turned to walk away, PO Teco said, "I just want you to know, if you don't take blood, I can actually arrest you." [REDACTED] said, "Are you threatening me?" PO Teco said, "I'm not threatening you. I'm just telling you what could be done." PO Teco had no intention of arresting [REDACTED] PO Teco never told [REDACTED] that he was going to arrest her. PO Teco told [REDACTED] he could arrest her once. PO Teco never specified to [REDACTED] what she could be arrested for, but he could have arrested her for obstruction of governmental administration. [REDACTED] could be arrested for OGA because she was preventing officers from finding out if CIV1 was under the influence and what he was under the influence of.

[REDACTED] said, "You're threatening me," and walked away. PO Teco followed her down the hallway. Instead of calling an administrator to move the process along, [REDACTED] stopped at the nurses' station to tell other staff, "He threatened to arrest me." PO Teco slightly raised the volume of his voice and said, "What are you doing? Aren't you going to call an administrator?"

PO Teco followed [REDACTED] into her office so he could hear what the administrator said. She told him to leave three times. PO Teco does not think he told [REDACTED] she could be arrested while in her office. Then a security officer came and told him to leave. At that point, PO Teco realized that he had "gone overboard." PO Teco called his command and spoke to PO Moane. He told PO Moane, "The nurse won't draw blood. What should I do?" PO Moane replied, "Didn't you get the memo?" PO Teco asked which memo, because he had just returned to work two days prior after his wife had a baby. PO Moane replied, "Whatever you do, don't threaten anybody with arrest." PO Teco replied, "I didn't know. I just did that ten minutes ago."

PO Teco then spoke with the administrator who read the hospital policy to him. The administrator told PO Teco that the policy stated that if NYPD personnel request blood be drawn, medical personnel is supposed to draw blood. The administrator

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looked surprised and then read from another page that said the same thing. The administrator then told PO Teco, “If you want her to take blood, she’ll take the blood.” At that point, however, it did not make a difference because the arresting officer told PO Teco that CIV1 had rescinded his consent. PO Teco walked out, and as he was leaving [REDACTED] was yelling, “I was right! I was right!”

PO Teco did not have a specific recollection of requesting blood be drawn from an arrestee at Staten Island University Hospital in the past. In general terms, the protocol is for an officer to tell the arrestee why they are there and then ask the arrestee if they will consent to having their blood drawn. If the patient provides consent, officers find a medical professional who will confirm consent with the patient. If the patient confirms consent, the medical personnel draws the blood and fills out the paperwork. If an arrestee provides consent, the police do not need a warrant to obtain a blood sample from him or her.

Interview Details

Witness Officer: PO Samantha Surat

- *PO Samantha Surat is a white woman who was 29 years old at the time of the incident. She is 5'7" tall, weighs 190 pounds, and has brown hair and eyes.*
- *On December 6, 2013, PO Surat was assigned to Sector Patrol and RMP no. [REDACTED] from 7:05 a.m. to 3:40 p.m. with PO Nevarez. She was dressed in uniform*

Memo Book

On the date of the incident, PO Surat's memo book states verbatim, "11:20 - 84 SIUHS. 12:00 -Sgt. Cornejo visited. 14:10 - Sector A pick up at SIUHS to 120 pct."

CCRB Testimony

PO Samantha Surat was interviewed at the CCRB on April 7, 2014. The interview began at 10:06 a.m. and concluded at 10:13 a.m.

At 11:20 a.m. on December 6, 2013, PO Surat was at Staten Island University Hospital watching an arrestee who had been transported to the hospital following his arrest for driving while intoxicated. PO Surat was focused on the arrestee as he was very intoxicated. PO Surat did not know the reason the arrestee was taken to the hospital rather than the precinct stationhouse. A member of the hospital's personnel came into the room to take the arrestee's vitals, but PO Surat did not interact with any hospital staff. PO Surat did not leave the room where the arrestee was located for the entire time she was at the hospital.

A highway patrol officer came with a blood kit that he was preparing. PO Surat did not recall if anyone asked the arrestee whether or not he provided consent for his blood to be drawn. PO Surat did not recall if the arrestee provided consent for his blood to be drawn, but blood was not drawn from the arrestee while PO Surat was in the room. PO Surat did not recall if the arrestee ever withdrew consent for his blood to be drawn.

The highway patrol officer interacted with a member of hospital personnel outside the door. The door was closed, and PO Surat could not hear any of the statements that were made. PO Surat never heard the highway patrol officer tell any hospital staff that he would not arrest them. The highway patrol officer came back later and said, "We're not doing blood. Refused." PO Surat could not remember how the incident ended or whether or not there was discussion of a warrant being needed to draw the arrestee's blood.

PO Nevarez was in the room with PO Surat for about ten minutes, processing arrest paperwork. Sgt. Cornejo came to check on PO Surat.

Interview Details

Witness Officer: PO Gendyliss Nevarez

- PO Nevarez is a Hispanic female who was 35 years old at the time of the incident. She is 5' tall, weighs 117 pounds, and has black hair and brown eyes.
- On December 6, 2013, PO Nevarez was assigned to patrol in the 123rd Precinct, from 7:05 a.m. to 3:35 a.m. She was partnered with PO Surat, dressed in uniform, and assigned to RMP no. [REDACTED]

Memo Book

On the date and time of occurrence, PO Nevarez's memo book states verbatim, "10:30 - 54 at [REDACTED] 10:40 a.m.- 84. 10:55 a.m. - 1 under. [REDACTED]"

[REDACTED] At the time and place of occurrence, EMS personnel [REDACTED] did observe the defendant behind the wheel of a blue 2007 Dodge Durango at [REDACTED]. While speaking with the defendant, the arresting officer could smell the odor of alcohol on his breath and speech was slurred, eyes blood shot. IDTU officer attempted to conduct test. [REDACTED] refused. No blood test taken on arrival to hospital. 4:26 p.m. - 61 to 130 Stuyvesant Avenue to draw up case."

CCRB Testimony

PO Nevarez was interviewed at the CCRB on April 23, 2014. The interview began at 8:44 a.m. and concluded at 8:53 a.m. Her testimony is summarized below.

After being placed under arrest, [REDACTED] was transported to the hospital because EMS was on the scene, they were concerned that [REDACTED] was suffering from alcohol poisoning. [REDACTED] was incapable of walking. PO Nevarez recognized [REDACTED] from the hospital. PO Nevarez observed [REDACTED] in an office. She did not interact with her and did not observe the highway patrol officer interact with her.

At Staten Island University Hospital, PO Nevarez could not leave the room where [REDACTED] was situated. PO Surat was also in the room with her for some time, but also went back to the stationhouse to prepare arrest paperwork. An unidentified officer from Highway Patrol arrived in order to have [REDACTED] blood drawn and processed. The highway patrol officer asked [REDACTED] if he was willing to provide a blood sample. [REDACTED] verbally stated his consent. PO Nevarez was present at this time, but did not remember who else was present.

PO Nevarez did not interact with any hospital personnel, and she did not observe the highway patrol officer interact with any hospital personnel. The highway patrol officer was periodically in and out of [REDACTED] room. PO Nevarez did not observe any hospital personnel ask to speak to the highway patrol officer in the hallway. PO Nevarez never heard any hospital personnel refuse to draw [REDACTED] blood. PO Nevarez did not remember hearing [REDACTED] withdraw his consent to have his blood drawn. PO Nevarez never heard the highway patrol officer threaten to arrest any hospital personnel. In her observation of the highway patrol officer, his demeanor was professional.

The highway patrol officer was out of [REDACTED] room for about forty-five minutes. When he came back, he told PO Nevarez they would not be drawing [REDACTED] blood because the nurse had refused. He did not elaborate on the reasoning and then left the hospital. No officer informed PO Nevarez of a dispute regarding drawing [REDACTED] blood.

PO Nevarez has never gone to Staten Island University Hospital with a civilian arrested for DUI before. To her knowledge, written consent is not required as part of police department protocol for having an arrestee's blood drawn. The protocol for a DUI arrest when the arrestee needs medical attention is for the civilian to be brought to the hospital, where a highway patrol officer will come and order a blood sample.